

Kenya Institute of Primate Research

POLICY DOCUMENT

Data Management and Protection Policy

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FOREWORD



The Kenya Institute of Primate Research (KIPRE) derives its mandate from legal notice No. 273, The Science, Technology and Innovation Act, which stipulates the objectives and functions of KIPRE. Some of these functions are to conduct basic, pre-clinical and translational research using non-human primates and other experimental animals, to contribute to early warning systems for emerging and re-emerging diseases, to undertake studies in non-human primate conservation biology and primatology, to create and maintain a national non-human primate database on consensus research affiliations, and geo-spatial distribution of non-human and related zoonotic diseases, to serve as a national research Centre for venom and anti-venom including snake bite disease and to undertake capacity building in animal welfare, ethical use and care of non-human primates and other experimental animals in laboratory settings.

In the course of carrying out its functions, KIPRE collects, processes and manages various forms of data including personal, research and operational data. In formulating this Policy, the Institute's mandate and focus issues were taken into consideration.

This Data Management and Protection Policy is in line with global best practices and consistent with Kenyan and other international laws and regulations including the Kenya's Data Protection Act (2019), The Kenya Data Protection Regulations (2021), Kenya Information and Communications Act (2020), Kenya's Access to Information Act (2016), Kenya's Government ICT Standards (2019) and the EU General Data Protection Regulation (2018).

Signed:

Mulimba

Professor Josephat Mulimba, PhD., FRSM

Chairman, Board of Directors

Date: 07 day of April 2025



PREFACE



While undertaking its duties and responsibilities, the Kenya Institute of Primate Research (KIPRE) collects, processes, stores and shares considerable amounts of data. This data is key in informing critical decision-making of day-to-day operation and functioning of the institution. With a core mandate to perform biomedical research, KIPRE generates scientific data that is disseminated in various platforms and shared among its stakeholders. This allows full understanding of national and global health challenges, and help in the development of solutions based on best available evidence. KIPRE therefore commits to promote effective management of its data to ensure information generated is accurate, reliable, processed efficiently, secured from loss and/or cyber-attack and that sensitive and personal data is protected from unauthorized access.

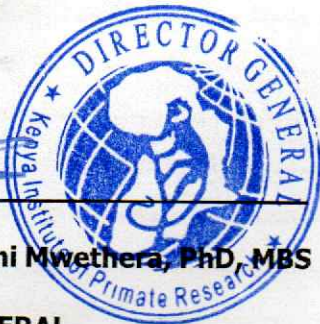
This policy document provides a framework on best practices related to data management, protection and sharing in compliance with the relevant laws. It focuses on management and governance of data assets and outlines processes pertaining to data ownership, data sharing, data security and data retention and disposal. It equally defines specific roles of persons who will ensure that the policy is easily accessed, enforced and communicated to all staff members and stakeholders.

As we embrace the digital economy age and conform to the government's directive to enhance digital transformation, KIPRE endeavors to support continuous improvement of its data management standard in a bid to enhance research and service delivery.

Signed:



Dr. Peter Gichuhi Mwethera, PhD, MBS
DIRECTOR GENERAL



Date: 07 day of April 2025

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ABBREVIATIONS

CEO	Chief Executive Officer
DPA	Data Protection Officer
DPO	Data Protection Act
EU	European Union
ICT	Information and Communication Technology
IP	Intellectual Property
KIPRE	Kenya Institute of Primate Research
PI	Principle Investigator
SAGA	Semi-Autonomous Government Agency
SMS	Short Message Service
WHO	World Health Organization

DEFINITION OF TERMS

Data Controller – is the entity with overall responsibility of data collection and management. Alone or jointly with others, the Data Controller determines the purposes and means of the processing of personal data. In this policy, KIPRE is the Data Controller.

Data Processor – means a natural or legal person, public authority, agency or other body handling or processing data on behalf of the Data Controller

Data Protection officer- Person appointed by KIPRE to ensure that the organization processes the personal data of data subjects in compliance with the applicable data protection laws.

Data Subject – refers to an individual or entity about whom data is held

Filing system- any structured set of personal data which are accessible according to specific criteria, whether centralized, decentralized, or dispersed on a functional or geographical basis

Processing- means any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.

Personal data –means any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person.

Personal Data Breach-means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, personal data transmitted, stored or otherwise processed

Researcher-the individual who conducts, directs, and/or facilitates research activities and carries the primary responsibility for the research. The researcher is referred to as the principal investigator (PI) when acting as the leader of a research team.

Research Data-facts and observations on which a test is based. The data may be numeric or descriptive

Sensitive Personal Data-refers to data revealing a person's race, health status, ethnic, social origin, conscience, belief, genetic data, biometric data, property details, marital status, family details – names of children, parents, spouse, gender, or sexual orientation of a data subject

Third Party-means an entity or person(s) who, under the direct authority of the controller or processor, are authorized to process personal data

ARTICLE 1: INTRODUCTION

The Kenya Institute of Primate Research (KIPRE), whose mandate is biomedical and pre-clinical research, is a semi-autonomous government agency established under the Legal Notice No. 273 of 2017 in the Science, Technology and Innovation Act No. 28 of 2013. KIPRE, operates under the Ministry of Health, State Department for Public Health and Professional Standards through the Presidential Executive order No. 1 of January, 2023.

1.1 Vision

To be a global center of excellence in innovation, basic, preclinical, biomedical research and non-human primate conservation

1.2 Mission

To improve human health and biodiversity through advances in basic and preclinical biomedical research and non-human primate conservation

1.3 Core values

The core values of KIPRE include: research integrity, professionalism, good corporate governance, equity and customer focus.

1.4 Guiding principles

The guiding principles of KIPRE include: efficiency, teamwork, partnership, innovativeness and dynamism

1.5 Functions

The functions (as stated in legal notice No. 273 of 2017) of KIPRE shall be to:

- a) Conduct basic, pre-clinical and translational research using non-human primates and other experimental animals in liaison with the relevant government agencies
- b) Establish an incubation centre linking research and industry in the health products value chain
- c) Contribute to early warning systems for emerging and reemerging diseases
- d) Establish and operate a national breeding colony of nonhuman primates and other experimental laboratory animals for research purposes

- e) Provide national in-vitro fertilization services for endangered wildlife of Kenya in liaison with relevant Government agencies
- f) Undertake studies in non-human primate conservation biology and Primatology
- g) Create and maintain a national non-human primate database on census, research affiliations, and geo-spatial distribution of non-human and related zoonotic diseases
- h) Serve as a national research centre for venom and anti-venom including snake bite disease
- i) Undertake basic and pre-clinical research on reproductive health, infectious and non-communicable diseases using non-human primates
- j) Develop and characterize both non-human primate and other experimental animal models for priority diseases in Kenya
- k) Undertake research in Human African Trypanosomiasis disease
- l) Undertake capacity building in animal welfare, ethical use and care of non-human primates and other experimental animals in laboratory settings
- m) Perform any other function which is incidental to the performance of any of the foregoing functions

ARTICLE 2: POLICY STATEMENT, RATIONALE, GUIDING PRINCIPLES, SCOPE AND OBJECTIVES

While discharging its mandate, KIPRE collects, utilizes, stores and manages data obtained from its corporate and research responsibilities. Such data include personal, research, intellectual property and operational data. KIPRE recognizes the value and sensitivity of its data and as such this policy provides a set of guidelines and standards to safeguard the organization's data from loss, manipulation and malware, and ensure data privacy by controlling access to the data. This policy therefore provides KIPRE's commitment to data management & sharing and the framework for its practical implementation.

2.1 Policy statement

- 2.1.1 This policy seek to ensure that all data is in compliance with the relevant national and global regulations pertaining to data management and protection.
- 2.1.2 Pertaining to personal data, this policy seeks to ensure that KIPRE complies with the Kenya Data Protection Act (DPA, 2019).

2.1.3 All research conducted at KIPRE shall comply with this policy to ensure that:

- i) research data is effectively managed, stored and preserved through its entire data lifecycle in accordance with stipulated guidelines
- ii) data management plans are provided when required by overseeing bodies as stipulate in this policy
- iii) data generated is disseminated and shared in a responsible manner, while considering intellectual property, legal or ethical obligations where applicable
- iv) metadata shared across the research community is accurate and where required, published results will include links or references to the supporting data and allows for its use in developing solutions based on best available evidence
- v) training and capacity building is made available to all researchers and students in support of sustainable and responsible research data establishment.

2.2 Rationale

In cognizance of the type and sensitivity of KIPRE's data, the institution through this policy shall offer guidance on how data shall be managed following best practices and in accordance with Kenyan laws and international data management standards. This shall ensure improved data integrity, consistency and security and subsequently reduce data redundancy and loss. It shall also enable efficient data access and sharing platforms that shall improve the overall performance of the institution.

2.3 Data management and protection principles

KIPRE shall be governed by the following data management and protection principles:

- i) Lawfulness, fairness and transparency
- ii) Purpose limitation
- iii) Data minimization
- iv) Accuracy
- v) Storage limitation
- vi) Integrity and confidentiality
- vii) Accountability

2.4 Scope

- 2.4.1 This Policy applies to the management and protection of KIPREs data as guided by existing Kenyan laws and other relevant regional and international standards.
- 2.4.2 The policy covers all data managed by KIPRE that include:
- i) Personal data that comprise of but not limited to staff data (and their dependent), donors, consultants, partners, collaborators, students, interns, casuals and visitors
 - ii) Research data collected for the purposes of KIPRE's research, including the metadata that describes it and derived information. The policy applies to numerical and non-numerical data, and to data stored in both soft and hard copy form
 - iii) Operational data that is used to manage day-to-day operations of the institution that include but not limited to transactional, procurement, finance and marketing data
 - iv) Data of 'users' of KIPRE's website ('site') and other online products and services offered by KIPRE

2.5 Objectives

The objectives of this policy are to:

- i) Govern the way KIPRE collects, records, organizes, stores, uses, discloses, destructs ('processing') and disposes all data by digital or non-digital means, and which forms or is intended to form part of a filing system
- ii) Set out the overall data protection requirements for KIPRE's corporate and research operations
- iii) Guide on data availability and accessibility while respecting the rights of stakeholders in terms of confidentiality, intellectual property and data ownership

ARTICLE 3: ADMINISTRATION OF POLICY

A supporting institutional environment will be necessary for the implementation of this policy and includes:

- i) Providing guidelines for tracking and managing all data generated by the organization throughout its lifecycle
- ii) Providing tools and systems for better data management
- iii) Implement ethical frameworks to protect all data
- iv) Provide individuals with transparency and knowledge of their data rights

The following persons have specific roles in relation to this policy as outlined below:

3.1 The Director General

The Director General shall oversee the implementation of the Policy by developing appropriate programs and guidelines and establishing systems and processes to protect all data in the organization.

3.2 The Data protection officer

The Deputy Director, Information Communication Technology (ICT) Division shall be appointed as the Data Protection Officer (DPO) in accordance with the Data Protection Act (DPA) 2019. They shall coordinate implementation of this policy across the organization's various functions. The DPO shall liaise with staff and ensure compliance to this and other related policies. The role of the DPO is as stipulated in the DPA 2019.

3.3 ICT Division

The Deputy Director, ICT Division shall coordinate the following:

- i) Notify relevant staff in case of a data breach
- ii) Secure data from loss, unauthorized access, and inconsistencies
- iii) Ensure data availability and accessibility
- iv) Acquire databases/software used to safely capture, manage and store data collected by KIPRE during its operations
- v) Ensure compliance with KIPRE ICT policy
- vi) Oversee KIPRE's data-sharing systems and processes, ensuring compliance with existing laws and regulations

3.4 Internal audit & risk assurance directorate

The Director, Internal audit and risk assurance, shall coordinate an independent risk assessment biannually that identifies relevant risks in data management and adequacy of processes and controls in place to mitigate them.

3.5 Corporation secretary and legal services directorate

The Director, Corporation secretary and legal services shall coordinate the:

- i) Revision of the policy and advise on any changes in the law relating to data protection
- ii) Draft and review contracts with partners and third parties to ensure compliance with the data protection policy
- iii) Ensure contracts with partners are aligned to Data Protection principles

3.6 All KIPRE Staff

KIPRE staff shall:

- i) Handle data related to the organization as required by the applicable laws and align with the principles outlined in this policy
- ii) Report data incidences, breaches, and malpractice to the DPO

ARTICLE 4: DATA OWNERSHIP, MANAGEMENT AND RESPONSIBILITIES

KIPRE asserts ownership over operational data and research data for all projects conducted at the institute, under the auspices of the institute, or with the institute resources. Data will be managed as described in the following sections.

4.1 Operational data

This data shall be centrally managed by the ICT division in liaison with the following persons:

- i) Director, Research and Product Development
- ii) Director, Animal Sciences, Welfare and Ethics
- iii) Director, Corporation Secretary and Director Legal
- iv) Director Capacity Building, Partnership and Grants management
- v) Director, Corporate Services
- vi) Director, Internal audit and Risk Assurance

4.2 Personal Data

- 4.2.1 Personal data is owned by the "Data Subject" whose personal information has been collected and is being processed, applied or consumed by the "data controller" in this context KIPRE. The rights of the Data subject and responsibilities of the controller shall be managed as stipulated in the DPA 2019.

- 4.2.2 Consent of personal data, how it can be obtained, accessed and its withdrawal shall be managed as stipulated in the DPA 2019.

4.3 Research Data

- 4.3.1 The responsibility of the Director, Research and Product Development shall include but not limited to:
- i) Ensuring compliance with the terms of research agreements
 - ii) Protecting the rights of researchers, including, but not limited to, their rights to access research data of which they participated
 - iii) Facilitating investigation of charges such as research misconduct and/or other conflicts of interest
 - iv) Maintaining appropriate confidentiality and security protections over research data
 - v) Ensuring compliance with applicable laws and regulations
- 4.3.1 Principal Investigators (PIs) and other researchers are stewards and custodians of research data. In situations where the PI's choose to delegate responsibility within their research groups, the PIs shall remain accountable to KIPRE for the stewardship of research data.
- 4.3.2 The PI's responsibilities with respect to research data include, but are not limited to:
- i) Ensuring proper management and retention of research data in accordance with this policy
 - ii) Establishing and maintaining appropriate procedures for the protection of research data
 - iii) Ensuring compliance with program requirements and applicable laws and regulations
 - iv) Maintaining confidentiality of research data, where appropriate
 - v) Maintaining appropriate data use agreements for the sharing of research data
- 4.3.3 In case of research misconduct, KIPRE may take custody of research data in a manner described in the research policy or as directed by the Director General.
- 4.3.4 Projects may move from one KIPRE to another institution in situation such as at a time the PI moves. In such event, the ownership of the original data may move to the PI's new institution upon request from the PI and subject to:
- i) Written approval from the Director General of KIPRE

- ii) Written agreement from the PI's new institution that guarantees its acceptance of ongoing custodial responsibilities for the data and KIPRE having access to the original data, should such access become necessary for any reason
 - iii) Relevant confidentiality restrictions, where appropriate
- 4.3.5 When individuals, other than PIs, who have been substantively involved in research projects at KIPRE leave the organization, they may take with them copies of research data resulting from these projects, subject to relevant confidentiality restrictions and any requirements of the original research project. In this event the ownership of the research data remains with KIPRE and original data must be retained at KIPRE by the PI.
- 4.3.6 In either of these instances (4.3.4 and 4.3.5), the remaining members of the research team retain the rights to use the original data.
- 4.3.7 Any publications resulting from the data will be subject to the original agreements.

4.4 Intellectual Property Data

Intellectual property (IP) data will be managed according to the KIPRE IP policy.

ARTICLE 5: DATA SHARING

5.1 Personal data

- 5.1.1 KIPRE shall ensure that no Personal Data is transferred to a country or organization unless that country or organization ensures an adequate level of protection for the rights and freedoms of Data Subjects in relation to the processing of Personal Data, unless such transfer is for compliance with KIPRE data protection in accordance with KIPRE ICT Policies and DPA 2019.
- 5.1.2 KIPRE shall in some circumstances have to share Personal Data with Third Parties, including service providers and other statutory bodies. KIPRE shall require Third Parties to fully comply with this Policy.
- 5.1.3 KIPRE shall ensure that Personal Data held in organizational ICT resources that traverse national boundaries are shared across systems in compliance with this Policy and/or applicable Regulatory Requirements.

5.2 Research data

- 5.2.1 Research data may be made available to interested parties subject to the terms of applicable data use agreement, or other governing agreements, which outline the security and confidentiality requirements.
- 5.2.2 Such agreements must be approved by the Director General, KIPRE.

ARTICLE 6: DATA SECURITY

- 6.1 The ICT division shall be responsible for handling and managing electronic data and secure use of information technology systems according to the Kenya Information and Communication Act (2020), Kenya Access to Information Act (2016) and Kenya Government ICT Standards (2019). They shall ensure data security measures including but not limited to:
 - i) Data privacy
 - ii) Password management
 - iii) Internet and email usage
 - iv) Institutional mobile device usage
 - v) Website and social media platform
 - vi) Oversee software copyright and licensing
 - vii) Report security incidents
- 6.2 All KIPRE employees and stakeholders shall be responsible for ensuring that they are familiar with and comply with the KIPRE ICT Policy and other governing laws.
- 6.3 Access to all data shall be limited to those who need to access it in undertaking their legitimate duties as part of KIPRE.

ARTICLE 7: BREACH OF DATA PRIVACY

- 7.1 KIPRE shall investigate incidents involving a possible breach of data privacy legislation in order to ensure that, where necessary, appropriate action is taken to mitigate the consequences and prevent a repetition of similar incidents in future.
- 7.2 For personal data, data subjects shall be notified of the breach within 72 hours (or less) of KIPRE first having become aware of a breach.

- 7.3 Incidents involving failures of IT systems or processes shall be reported to the DPO within 4 working hours of discovery. The DPO shall liaise, as appropriate, with the ICT Team.
- 7.4 All other incidents shall be reported directly to the DPO at the earliest possible opportunity.
- 7.5 KIPRE shall not be held responsible for disclosure of Personal Data in its possession that is also held in other public or private systems.

ARTICLE 8: RETENTION AND DISPOSAL OF DATA

Data shall be kept for as long as is necessary and the method of disposal shall be appropriate to the confidentiality of the information. Retention and disposal of data shall be governed by relevant national and global regulations.

8.1 Personal data

Personal Data shall not be retained longer than is required for its lawful processing in accordance with DPA (2019).

8.2 Research data

- 8.2.1 Basic research data can be retained at least 10 years after the study has been completed.
- 8.2.2 Population health and clinical studies can be retained at least 20 years after study completion.
- 8.2.3 If research data are no longer useful, or unlikely to be used in further research, then you should consider their destruction
- 8.2.4 Studies which propose retention periods beyond the minimum limits stated above, must include valid justification. However, it may be appropriate to consider longer retention periods in some cases; for example, where there is:
 - i) A greater likelihood that scientists will be asked to share data with others for further research or for reproducibility reasons
 - ii) Intellectual Property or the potential for IP to arise shall be managed as outlined in the IP policy

- iii) A greater likelihood that participants might suffer harm as a result of the research.
- iv) Direct impact on national policy making and/or the results are of historical importance

ARTICLE 9: DISPUTE RESOLUTION

- 9.1 All conditions provided in this policy shall be adhered to.
- 9.2 Partner organizations shall notify their designated contact person for implementation of these guidelines of any complaints.
- 9.3 The DPO shall institute investigations in respect to the complaints and report the outcome of the investigations within 3 months.
- 9.4 The Director General, KIPRE shall provide guidance on arbitration for complaints that cannot be handled by the DPO.
- 9.5 Any breach of the data and information sharing guidelines shall be dealt with according to institutional policies and appropriate national laws.
- 9.6 The DPO shall monitor new and on-going data protection risks and update the relevant risk register at KIPRE annually.

ARTICLE 10: MONITORING AND REVIEW OF IMPLEMENTATION

The Internal Audit Unit and the Data Protection Officer shall monitor the implementation of this policy, regularly considering its suitability, adequacy and effectiveness.

ARTICLE 11: ADOPTION AND IMPLEMENTATION

This Policy shall be adopted by the Institute after approval by the KIPRE board of Directors and implemented immediately thereafter.

ARTICLE 12: REVIEW AND AMENDMENTS

This Policy shall be reviewed every three (3) years or as need arises.

REFERENCES

- i) Kenya's Data Protection Act (2019)
- ii) The Kenya Data Protection Regulations (2021)
- iii) Kenya Information and Communications Act, (2020)
- iv) Kenya's Access to Information Act (2016)
- v) Kenya's Government ICT Standards (2019)
- vi) EU General Data Protection Regulation (2018)
- vii) WHO data sharing policy (2017)
- viii) African Population and Health Research Center Data protection and privacy policy (2022)
- ix) Retention framework for research data and records (Medical Research Council 2022)
- x) Nagoya Protocol on Access to Genetic Resources and the Fair and Equitable Sharing of Benefits Arising From their Utilization to the Convention on Biological Diversity (2011)

ANNEX I: NON-DISCLOSURE AGREEMENT TEMPLATE

ANNEX II: RESEARCH INFORMED TEMPLATE

ANNEX III: PERSONAL DATA CONSENT FORM

ANNEX IV: PRIVACY POLICY TEMPLATE